

Court No. - 39

Case :- WRIT - C No. - 37482 of 2014

Petitioner :- Siddharth Rai

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Rajendra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Sri Mahboob Ahmad has accepted notice on behalf of respondent no. 4. A week's time is allowed to him to seek instruction and to produce the original record of provisional and final assessment made against the petitioner.

Put up as fresh on 4th August, 2014.

Till 4th August, 2014, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery citation dated 28.05.2014.

Order Date :- 23.7.2014

nd

Court No. - 39

Case :- WRIT - C No. - 37482 of 2014

Petitioner :- Siddharth Rai

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Rajendra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

On the request made on behalf of learned counsel for the respondent, let this matter once again appear tomorrow i.e. 5.8.2014 in the list of supplementary fresh cases.

Interim protection granted earlier shall continue till tomorrow.

Order Date :- 4.8.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 37482 of 2014

Petitioner :- Siddharth Rai

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Rajendra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Put up as fresh on 14.8.2014.

Interim order shall continue till then.

Order Date :- 5.8.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 37482 of 2014

Petitioner :- Siddharth Rai

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Rajendra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri Rajendra Rai, learned counsel appearing for the petitioner, learned Standing Counsel for the respondents-State and Sri Mahboob Ahmad, appearing for the respondent no.4-corporation.

On 23.7.2014, a week's time was allowed to learned counsel for the respondent no.4 to seek instruction and to produce the original record of provisional and final assessment made against the petitioner.

The record produced today by Sri Mahboob Ahmad, appearing for the respondent-Corporation before the Court shows that the notice for provisional assessment was sent at the address 6/40B/1, Kanpur Road and it was returned back with postal remark that the addressee could not be found whereas the petitioner is a resident of 6/40B/1 P.D. Tandan Road, Civil Lines, Allahabad. It is clear that notice was not sent on the correct address, hence, it cannot be treated to be a valid service.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs.1,07,153/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity.

In view of the fact that service of notice for provisional assessment cannot be treated to be a valid service as it was not sent on the correct address of the petitioner, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned citation dated 28.5.2014 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar*** (supra).

Order Date :- 14.8.2014

Anil